

Stories Behind the Numbers:

An Overview on the Statistics and New Developments on Human Trafficking in the Philippines

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Nothing can be truer than what Pope Francis said about human trafficking: “Human trafficking is an open wound on the body of contemporary society, a scourge upon the body of Christ. It is a crime against humanity.”

The law governing human trafficking in the Philippines is embodied in Republic Act No. 10364 (R.A. No. 10364)¹, also called the Expanded Anti-Trafficking in Persons Act of 2012. This law strengthens the previously legislated Republic Act No. 9208 (R.A. No. 9208)², also called the Anti-Trafficking in Persons Act of 2003. R.A. No. 10364 covers attempted trafficking, new provisions on the liabilities of accomplices and accessories, and additional acts considered as human trafficking – namely, domestic/overseas employment for sexual exploitation, forced labor or involuntary debt bondage, recruitment of a Filipino woman to marry a foreign national, sex tourism, organ removal, and recruitment of a child to engage in armed activities abroad.

As can be gathered from the juvenile cases and family court cases from January to December 2021³, a quick look into the gender statistics involving cases against women and children for the past year reveals that there were 631 pending cases in the beginning of the year, 255 new cases filed, 147 decided cases, and 711 pending cases for 2022. This goes to show the alarming number of cases of trafficking in our country. In fact, even the Department of Justice - Office of Cybercrime (OOC) reported that the National Center for Missing and Exploited Children (NCMEC), a US-based private and non-profit corporation working to reduce child exploitation and help find missing children, recorded a total of 279,166 cases⁴ from its Cyberline Trip Report (CTR) hotline from March 1 to May 24 based on 76,561 reports.

¹ Official Gazette. Republic Act No. 10364. Retrieved from <https://www.officialgazette.gov.ph/2013/02/06/republic-act-no-10364/>.

² Official Gazette. Republic Act No. 9208. Retrieved from <https://www.officialgazette.gov.ph/2003/05/26/republic-act-no-9208-s-2003/>.

³ Supreme Court of the Philippines. Juvenile Cases and Family Court Cases: January to December 2021. Retrieved from <https://sc.judiciary.gov.ph/gender-corner/for-the-year-2021/>.

⁴ “Online Child Exploitation Reports in Ph Surge amid Covid-19: DOJ.” Accessed November 24, 2022. <https://www.pna.gov.ph/articles/1103852>.

Yet, far beyond the local statistics gathered by the Supreme Court, there seems to be a bigger problem involving human trafficking, as may be inferred from the data gathered by the United Nations. As discussed in the 2020 Global Report on Trafficking in Persons⁵ by the United Nations Office on Drugs and Crime (UNODC), about half of the detected victims in East Asia and the Pacific region are adult women. Children take up one-third of the total detected victims. The majority of detected victims continue to be trafficked for sexual exploitation. Additionally, East Asia and the Pacific victims – comprised of China, Japan, Malaysia, Philippines, Korea, Thailand, and Singapore, to name a few - have been detected in all regions and most sub-regions globally – in about 60 different countries. Both the diversity of the flows and the number of victims detected indicate that trafficking from East Asia has a global dimension. This means that most women and children in this area have been trafficked towards different parts of North America, Central, and South America, even to the Sub-Saharan African region.

Sadly, it is an undeniable fact that the Philippines is mostly a source country of trafficked persons. Previously, data on the magnitude of trafficking in persons from the Philippines are difficult to ascertain, although it is commonly believed to be significant given the intense and extensive international migration from the country⁶. Consequently, the advent of the passage of R.A. No. 9208 ushered the government to establish the Philippine Anti-Trafficking Database to collect and share trafficking-related information and to use this information as a basis for policy-making, action, monitoring, and evaluation. Since the enactment of the Anti-Trafficking in Persons Act⁷, the Inter-Agency Council Against Trafficking (IACAT) has monitored a total of 3,849, 60% or 2,297 of which were decided— or either resolved, archived, dismissed, or decided after a full-blown trial or utilization of a victim-centered prosecution strategy, such as plea bargaining. Recent findings further disclose that from January to December 2020, there were a total of 393 trafficking-in-persons cases filed before the Regional Trial Courts all over the Philippines. More so, the Inter-Agency Council Against Trafficking (IACAT) has monitored and recorded 644 trafficking in persons (TIP) convictions against 649 persons convicted, thereby giving justice to 1,583 trafficked victims, 933 (59%) of whom were minors since the enactment of the said law.

⁵ United Nations Office on Drugs and Crime. Global Report on Trafficking in Persons 2020. Retrieved from https://www.unodc.org/documents/data-and-analysis/tip/2021/GLOTiP_2020_15jan_web.pdf

⁶ “Supporting Victims-Survivors after Trafficking: Recovery, Return and Reintegration Programs in the Philippines.” End Slavery - English. Accessed November 24, 2022. http://www.endslavery.va/content/endslavery/en/publications/acta_20/asis.html.

⁷ Inter-Agency Council against Trafficking (IACAT). Accomplishment Report for The Reporting Period: CY 2020. Retrieved from <https://iacat.gov.ph/wp-content/uploads/2022/02/2020-IACAT-Annual-TIP-Report-2.pdf>

Even with such a comprehensive law in place, more progressive attempts are also being taken by the government to keep up with the changing trends at this time. In fact, as early as January 2022, the Senate unanimously passed, on the third and final reading, Senate Bill No. (SBN) 2449⁸, which proposes to further amend Republic Act No. 9208, as already amended by R.A. No. 10364. This has now been recognized as a law designated as Republic Act No. 11862 or the Expanded Anti-Trafficking Act of 2022⁹. R.A. No. 11862 ¹⁰aims to cater to victims of trafficking abroad, in the offshore gaming industry, and in underground online groups. The law will also provide law enforcers with additional tools for pursuing human traffickers, particularly when the violations involve the use of the internet and digital platforms, social media networks, and financial and e-commerce intermediaries. With the advent of the digital age starting from the year 2000 up to the present, where online technologies are weaponized for criminal activities.¹¹, such as human traffickers who trick people with fake job offers and promises and then exploit them for profit, this law should hopefully address such problems.

R.A. No. 11862, with Senator Risa Hontiveros as one of its authors, was crafted at the height of the Covid-19 pandemic. In order to incorporate aspects of human trafficking in such situation, the law also discusses certain provisions where there are additional aggravating circumstances when the crime is committed during a crisis, a public health concern such as a pandemic, a disaster, a humanitarian conflict or emergency situation, or when the trafficked person is a survivor of the same. Additionally, this law obliges local government units (LGUs) to provide recovery and reintegration support to trafficked persons and their families.

On the other hand, civil society organizations also play a hand in stopping trafficking. For instance, Destiny Rescue¹², a global organization, actively fights child sex trafficking in the Philippines. By doing hard rescues known as “sting operations,”¹³, Destiny Rescue works in partnership with law enforcement to rescue victims of child sex trafficking and bring perpetrators to justice. Although sting operations vary based on location, target, and logistics, these ultimately involve research, intensive reconnaissance work, trust-building, and undercover operations in red light establishments. In 2021, Destiny Rescue’s anti-trafficking efforts in the Philippines alongside law enforcement accomplished 251 rescues, 47% of which were children, and 47 arrests.

⁸ Senate of the Philippines. House Bill 2449. Retrieved from <https://legacy.senate.gov.ph/lisdata/36626335981.pdf>

⁹ Senate of the Philippines. Republic Act 11862. https://legacy.senate.gov.ph/republic_acts/ra%2011862.pdf

¹⁰ “Press Release - PRIB: Senate Moves to Strengthen Anti-Trafficking Law.” Latest News. Accessed November 24, 2022. https://legacy.senate.gov.ph/press_release/2022/0131_prib1.asp.

¹¹ “The Role of Technology in Human Trafficking.” United Nations: Office on Drugs and Crime. Accessed November 24, 2022. <https://www.unodc.org/unodc/en/human-trafficking/Webstories2021/the-role-of-technology-in-human-trafficking.html>.

¹² “Fighting Child Trafficking in the Philippines.” Destiny Rescue, October 25, 2022. <https://www.destinyrescue.org/our-work/where-we-work/philippines/>.

¹³ Destiny Rescue. Awareness & Action: Child Sex Trafficking Guide. p. 28-30. Retrieved from <https://www.destinyrescue.org.au/wp-content/uploads/2020/06/Destiny-Rescue-Trafficking-Field-Guide-Awareness-to-Action.pdf>

Another active actor that combats trafficking is End Child Prostitution in Asian Tourism (ECPAT).¹⁴ ECPAT is part of a global network of organizations and individuals working together for the elimination of child prostitution, child pornography, and the trafficking of children for sexual purposes. ECPAT has been proactive in its means to push its initiatives such as policy legislative advocacy and networking (PLAN) program, community and school education, as well as capacity building for law enforcers, service providers, and civil society organizations, and tourism workers.

In totality, there is weight in the findings of Prosecutor Aileen Marie S. Gutierrez when she discussed in her 2016 International Sex Trafficking Conference in Honolulu¹⁵: “Human trafficking is a multi-million criminal industry, in which traffickers adapt quickly to perpetuate their trade. As traffickers innovate their trafficking processes, and as new purposes for trafficking emerge and new vulnerable young groups come into the fold, countries all over the world must find new ways to combat this scourge. Governments accordingly must work cooperatively – both domestically and internationally – to prevent human trafficking.”

Indeed, there have been notable waves of progress that the Philippines has done to combat cases of human trafficking. With active legislative measures put in place, as well as effective implementation of laws at the national and local levels, non-government organizations have also been devoted participants to assist the government in these matters.

The fight to end human trafficking is far from over, but this shall only remind us that we will continue the fight and never back down. ■

¹⁴ ECPAT. Accessed November 24, 2022. <https://ecpat.org.ph/>.

¹⁵ Gutierrez, Aileen Marie S. Preventing Human Trafficking In the Philippines Overview and Current Activities. Retrieved from https://www.unafei.or.jp/publications/pdf/RS_No87/No87_13PA_Aileen.pdf